

The Central Secretariat Service Assistants' Grade (Direct Recruit Competitive Examination) Regulations, 2010

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The Central Secretariat Service Assistants' Grade (Direct Recruit Competitive Examination) Regulations, 2010

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The Central Secretariat Service Assistants' Grade (Direct Recruit Competitive Examination) Regulations, 2010

Rule

THE-CENTRAL-SECRETARIAT-SERVICE-ASSISTANTS-GRADE-DIRECT-RECRUIT-COMPETITIVE-EXAMINATION-REGULATIONS-2010 of 2010

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The Central Secretariat Service Assistants' Grade (Direct Recruit Competitive Examination) Regulations, 2010

Published vide Notification No. G.S.R. 169(E), dated 2nd March, 2010

Ministry of Personnel, Public Grievances and Pensions

(Department of Personnel and Training)

G.S.R. 169(E). - In exercise of the powers conferred by the proviso to article 309 of the Constitution and in pursuance of clauses (a) and' (c) sub-rule (2) of rule 12 of the Central Secretariat Service Rules, 2009, the President hereby makes the following regulations, namely:-

1.

Short title and commencement. - (1) These regulations may be called the Central Secretariat Service [Officers' Grade] (Direct Recruit Competitive Examination) Regulations, 2010.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions. - (1) In these regulations, unless the context otherwise requires,-

(a)

"available vacancies" means such vacancies in the [Assistant Section Officers' Grade] of the Service as are required to be filled on the results of open competitive examination;

(b)

"examination" means a competitive examination held by the Commission for direct recruitment to the [Assistant Section Officers' Grade]

[Substituted by Notification No. 754 (E), dated 2.8.2016 (w.e.f. 2.3.2010).]

of the Service and to posts of Assistants in such services, departments or offices, as may be notified from time to time by the Government of India in the Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions;

(c)

"Scheduled Castes" and "Scheduled Tribes" shall have the same meanings as are assigned to them by clauses (24) and (25) respectively of Article 366 of the Constitution of India;

(d)

"Other Backward Classes" means the castes and communities notified as Other Backward Classes by the Government of India;

(e)

"Persons with Disabilities" means the persons with disabilities as defined in the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995; and

(f)

"Commission" means the State Selection Commission.

(2)

All other words and expressions used in these regulations and not defined herein but defined in the Central Secretariat Service Rules, 2009 shall have the meanings respectively assigned to them in those rules.

3.

Holding of the examination. - (1) The examination shall be conducted by the Commission in the manner notified from time to time by the Government of India in the Department of Personnel and Training, Ministry of Personnel, Public Grievance and Pensions.

(2)

The dates on which and the places at which the examination shall be held shall be fixed by the Commission.

4.

Conditions of eligibility. - In order to be eligible to compete at the examination, a candidate must satisfy the following conditions, namely:-

(i)

Nationality-

(a)

He must be a citizen of India,

or

(b)

He must belong to such categories of persons as may from time to time be notified in this behalf by the Government of India in the Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions.

(ii)

Age - He must have attained the age of 20 years, and must not have attained the age of 27 years on the 1st day of August of the year in which the examination is held:

Provided that the upper age limit may be relaxed in respect of such categories of persons as may, from time to time, be notified in this behalf by the Government of India in the Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions, to the extent notified in respect of each category.

(iii)

Educational qualifications -

He must -

(A)

hold a degree of a University established or incorporated by or under a Central Act, a Provincial Act or a State Act, or otherwise possess any qualification recognised by the Central Government as equivalent thereto; and

(B)

qualify a proficiency test in computer operations approved or conducted by the Commission.

Provided that-

(a)

in exceptional cases, a candidate who, though not possessing any of the qualifications specified in this clause, may be treated by the Commission as qualified if he has passed such examinations conducted by any institution as are, in the opinion of the Commission, of a standard sufficient to justify his admission to the examination; and

(b)

candidates who are otherwise qualified but have taken degrees from Foreign Universities may also be admitted to the examination at the discretion of the Commission.

(iv)

Attempts at the examination - Every candidate shall have not more than three attempts at the examination unless covered by any of the exceptions notified by the Government of India in the Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions, from time to time.

(v)

Fees - Subject to such exemptions or concessions or both, as may be notified in this behalf by the Government of India in the Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions from time to time, he shall pay the fees specified by the Commission.

5.

Decision as to eligibility. - The decision of the Commission as to the eligibility or otherwise of a candidate for admission to the examination shall be final and no candidate to whom a certificate of admission has not been issued by the Commission shall be admitted to the examination.

6.

Results. - (1) The names of the candidates who are considered by the Commission to be suitable for appointment on the results of the examination shall be arranged in the order of merit and subject to the provisions of sub-regulation (5) of Regulation 7, they shall be recommended for appointment up to the number of appointments required to be made.

(2)

The form and manner of communication of the results of the examination to individual candidates shall be decided by the Commission in their discretion, and the Commission shall not enter into any correspondence with the individual candidates regarding the results.

7.

Appointments. - (1) Success at the examination shall confer no right to appointment to the [Assistant Section Officers' Grade] of the Service unless the candidate recommended by the Commission successfully completes such of the Training Programme or Foundation Course as the Central Government may prescribe.

(2)

Success at the examination shall confer no right to appointment to the [Assistant Section Officers' Grade]

[Substituted by Notification No. 754 (E), dated 2.8.2016 (w.e.f. 2.3.2010).]

of the Service unless the Central Government is satisfied, after such enquiry as may be considered necessary, that the candidate having regard to his character and antecedents is suitable in all respects for appointment to public service.

(3)

No candidate shall be appointed to the [Assistant Section Officers' Grade]

[Substituted by Notification No. 754 (E), dated 2.8.2016 (w.e.f. 2.3.2010).]

of the Service unless he is, after such Medical examination as the Central Government may prescribe, found to be free from any mental or physical defect which is likely to interfere with the discharge of the duties of the Service.

(4)

No person who has more than one spouse living or who, having a spouse living, marries in any case in which such marriage is void by reason of its taking place during the life time of such spouse, and no person whose marriage is void by reason of his or her spouse having already a spouse living at the time of such marriage shall be eligible for any appointment on the results of the examination:

Provided that Central Government may, if satisfied that there are special grounds for so doing, exempt any person from the operation of this sub-regulation.

(5)

Save as provided in sub-regulation (7), appointments to the [Assistant Section Officers' Grade]

[Substituted by Notification No. 754 (E), dated 2.8.2016 (w.e.f. 2.3.2010).]

of the Service on the results of any examination shall be made to the extent of the available vacancies, in the order of the merit of the candidates.

(6)

Appointments to the Service shall be subject to orders regarding special representation in the service for Scheduled Castes, Scheduled Tribes, Other Backward Classes and Persons with Disabilities issued by the Central Government from time to time.

(7)

The final merit of the candidates shall be reckoned on the basis of final ranking obtained on the basis of the marks obtained by the candidate in such of the mandatory training programme as may be prescribed by the Department of Personnel and Training and the marks obtained in the examination conducted by the Staff Selection Commission in the ratio of 25:75 respectively.

8.

Penalty for misconduct. - A candidate who IS or has been declared by the Commission to be guilty of -

(a)

obtaining support for his candidature by any means, or

(b)

impersonating, or

(c)

procuring impersonation by any person, or

(d)

submitting fabricated documents or documents which have been tempered with, or

(e)

making statements which are incorrect or false, or suppressing material information, or

(f)

resorting to any other irregular or improper means in connection with his candidature for the examination, or

(g)

using unfair means in the examination hall, or

(h)

misbehaving in the examination hall, or

(i)

attempting to commit, or as the case may be, abetting the Commission of all or any of the acts specified in the foregoing sub-regulations,

shall in addition to rendering himself liable to criminal prosecution, be liable -

(A)

to be disqualified by the Commission from the examination for which he IS a candidate, or

(B)

to be debarred either permanently or for a specified period

(i)

by the Commission from any examination or selection held by them;

(ii)

by the Central Government from any employment under them; and

(C)

if he is already in service under Central Government to disciplinary action under the appropriate rules.

Provided that no penalty under this regulation shall be imposed except after -

(i)

giving the candidate a reasonable opportunity of making such representation in writing as he may wish to make in that behalf, and

(ii)

taking the representation, if any submitted by the candidate, within a period allowed to him, into consideration.

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